

CHAPTER 21.

An Act to amend the Dentists Act, 1878, and the provisions of the Medical Act, 1886, amending that Act.
[28th July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Prohibition
of practice
of dentistry
by unregis-
tered
persons.

41 & 42 Vict.
c. 33.

1.—(1) No person shall, unless he is registered in the dentists register under the Dentists Act, 1878 (in this Act referred to as “the principal Act”), practise or hold himself out, whether directly or by implication, as practising or as being prepared to practise dentistry.

(2) Any person who acts in contravention of the provisions of this section shall, in respect of each offence, be liable on summary conviction to a fine not exceeding one hundred pounds.

(3) Nothing in this section shall operate to prevent—

(a) the practice of dentistry by a registered medical practitioner; or

(b) the extraction of a tooth by a duly registered pharmaceutical chemist or duly registered chemist and druggist, where the case is urgent and no registered medical practitioner or registered dentist is available and the operation is performed without the application of any general or local anæsthetic; or

(c) the performance in any public dental service of minor dental work by any person under the personal supervision of a registered dentist and in accordance with conditions approved by the Minister of Health after consultation with the Dental Board to be established under this Act.

(4) This section shall come into operation on the expiration of one year from the commencement of this Act or on the expiration of such further period not

exceeding two years as His Majesty may by Order in Council direct.

2.—(1) For the purposes of the principal Act and this Act, there shall be established a Board (hereinafter referred to as “the Board”) which shall be a body corporate by the name of the Dental Board of the United Kingdom, with perpetual succession and a common seal, and power to acquire and hold land without licence in mortmain.

Establishment and constitution of Dental Board and appointment of registrar.

(2) The provisions contained in the First Schedule to this Act shall have effect with respect to the constitution and proceedings of the Board.

(3) The seal of the Board shall be authenticated in manner prescribed by the Board, and any document purporting to be sealed with the seal so authenticated shall be receivable as evidence of the particulars stated in that document.

(4) For the purposes of the principal Act and this Act, there shall be a registrar, who shall perform such duties in connection with the dentists register as the Board may direct.

(5) The first registrar shall be appointed by the General Council with the approval of the Privy Council, and any subsequent appointment to the office of registrar shall be made by the Board.

(6) The person first appointed to the office of registrar shall hold office until the expiration of the term of office of the first members of the Board, and shall receive such salary as may be fixed by the General Council with the approval of the Privy Council, and any person subsequently appointed to the office of registrar shall hold office for such period and shall receive such salary as may be fixed by the Board.

(7) The Board may appoint a person to act as assistant registrar, subject, in the case of the person first so appointed, to the consent of the Privy Council, and may employ such other officers as the Board consider necessary.

There shall be paid to the assistant registrar and the officers of the Board such salaries or remuneration as the Board may from time to time determine.

Right of certain persons to be admitted to register.

3.—(1) The Board shall admit to the dentists register kept under the principal Act—

(a) any person who makes an application in that behalf within the interim period and satisfies the Board that he—

(i) is of good personal character; and

(ii) was for any five of the seven years immediately preceding the commencement of this Act engaged as his principal means of livelihood in the practice of dentistry in the British Islands, or was admitted to membership of the Incorporated Dental Society not less than one year before the commencement of this Act; and

(iii) had attained the age of twenty-three years before the commencement of this Act; and

(b) any person who makes an application in that behalf within the interim period and satisfies the Board that he—

(i) is of good personal character; and

(ii) was for any five of the seven years immediately preceding the commencement of this Act engaged as his principal means of livelihood in the occupation of a dental mechanic in the British Islands; and

(iii) had attained the age of twenty-three years before the commencement of this Act; and who within ten years from that date passes the prescribed examination in dentistry.

(2) Any person who satisfies the Board that he was at the commencement of this Act engaged as his principal means of livelihood in the practice of dentistry in the British Islands, and within two years from the commencement of this Act passes the prescribed examination in dentistry, shall, for the purposes of this section, be treated as having been engaged for five of the seven years immediately preceding the commencement of this Act in the practice of dentistry in the British Islands as his principal means of livelihood.

(3) Any person who is a duly registered pharmaceutical chemist or duly registered chemist and druggist shall, if he proves to the satisfaction of the Board that he had immediately before the commencement of this

Act a substantial practice as a dentist and that his practice included all usual dental operations, be treated for the purposes of this section as having been engaged for any five of the seven years immediately preceding the commencement of this Act in the practice of dentistry in the British Islands as his principal means of livelihood.

(4) The Board may, on such conditions as they may consider proper, dispense in the case of any person with any of the requirements prescribed by this section, other than requirements as to character or age, if they are satisfied that that person is unable to satisfy those requirements by reason of having served in His Majesty's forces, or of having been engaged during the war in some work of national importance, and that it will not be prejudicial to the public interest to dispense with those requirements.

(5) Regulations may be made under this Act for prescribing the manner in which applications under this section are to be made, and generally for carrying this section into effect.

4. A person registered under the principal Act—

Use of
titles and
descriptions.

(a) shall, by virtue of being so registered, be entitled to take and use the description of dentist or dental practitioner;

(b) shall not take or use, or affix to or use in connection with his premises, any title or description reasonably calculated to suggest that he possesses any professional status or qualification other than a professional status or qualification which he in fact possesses and which is indicated by particulars entered in the register in respect of him.

5.—(1) A body corporate may carry on the business of dentistry if—

Dental
companies.

(a) it carries on no business other than dentistry or some business ancillary to the business of dentistry; and

(b) a majority of the directors and all the operating staff thereof are registered dentists:

Provided that—

(a) a body corporate which was carrying on the business of dentistry before the passing of this Act shall not be disqualified for carrying on

- the business of dentistry under this section by reason only that it carries on some business other than dentistry or a business ancillary to that business, if that other business is a business which the body was lawfully entitled at the commencement of this Act to carry on; and
- (b) where any director of any body corporate which is carrying on the business of dentistry at the commencement of this Act satisfies the Board within the interim period that he has for any five of the seven years immediately preceding the commencement of this Act been acting as director of any such body corporate, he shall be entitled to be entered as such a director in a list to be kept by the registrar for the purposes of this section, and if so entered shall, for the purpose of this section, be treated in relation to that body corporate or any other body corporate formed for the purpose of reconstructing that body corporate or of amalgamating it with any other such body carrying on the business of dentistry at the commencement of this Act as being a registered dentist, but shall not by virtue of being so entered be entitled to practise dentistry.

(2) Save as aforesaid, it shall not be lawful after the date on which the provisions of this Act prohibiting the practice of dentistry by an unregistered person come into operation for any body corporate to carry on the business of dentistry, and, if any body corporate carries on the business of dentistry in contravention of the provisions of this section, it shall for each offence be liable on summary conviction to a fine not exceeding one hundred pounds.

Where a body corporate is convicted of an offence under this section, every director and manager thereof shall, unless he proves that the offence was committed without his knowledge, be guilty of the like offence, and the court may, in addition to a fine, order that the name of any director convicted under this provision shall be removed from the list aforesaid.

(3) Every body corporate carrying on the business of dentistry shall in every year transmit to the registrar a statement in the prescribed form containing the names

and addresses of all persons who are directors or managers of the company, or who perform dental operations in connection with the business of the company, and, if any such body corporate fails so to do, it shall be deemed to be carrying on the business of dentistry in contravention of the provisions of this section.

(4) The list to be kept under this section shall be published in the prescribed manner.

(5) Nothing in this section shall operate to prevent the carrying on of the business of dentistry by any hospital of any description (including an institution for out-patients only), or any dental school, which is approved for the purposes of this section by the Minister of Health after consultation with the Board.

6.—(1) On the establishment of the Board under this Act, there shall be transferred to the Board the powers and duties of the General Council under subsections (1), (3) and (4) of section eleven of the principal Act, and under section twenty-three of the Medical Act, 1886, so far as that section relates to orders made under the principal Act, and section forty of the principal Act shall have effect as though for references therein to the General Council there were substituted references to the Board, and references to the General Council in section thirty-nine of the principal Act shall be deemed to include references to the Board.

Powers, &c.
of Board and
registrar.

49 & 50 Vict.
c. 48.

(2) On the establishment of the Board under this Act, all existing rights and liabilities of the General Council arising out of or acquired or incurred in connection with the powers or duties of the Council which are by this Act transferred to the Board shall, by virtue of this Act, be transferred to and become rights and liabilities of the Board, and the dentists register kept under the principal Act by the Council, and all other records (if any) in the possession of the Council relating to matters arising under the principal Act, shall be delivered to the Board.

(3) A prosecution for any offence under the principal Act or this Act may be instituted by the Board.

(4) On the appointment of the registrar under this Act, the provisions of the principal Act, and section twenty-three of the Medical Act, 1886, so far as that section relates to orders made under the principal Act, shall have effect as though for references therein to the general

registrar or the registrar of the General Council there were substituted references to the registrar.

Power of
Board to
make
regulations.

7.—(1) Subject to the provisions of the principal Act and this Act, the Board may make regulations—

- (a) generally with respect to the form and keeping of the register and the making of entries and erasures therein, and in particular for the registration of the description of persons entitled to be registered by virtue of this Act; and
- (b) with respect to proceedings before the Board in connection with the removal from or restoration to the register of any name; and
- (c) prescribing the fee, not exceeding five pounds, to be charged in respect of the retention on the register of the name of any person registered after the commencement of this Act in any year subsequent to the year in which that person was first registered; and
- (d) for any other purpose for which regulations are to be made under this Act.

(2) Regulations made by the Board under this Act shall be submitted to the General Council for their approval, and shall, after being approved by the General Council, whether with or without modifications, be submitted for the approval of the Privy Council, and no such regulations shall have effect until they have been approved by the Privy Council:

Provided that, where the General Council propose to approve any such regulations with modifications, the Council shall inform the Board of the proposed modifications and give to the Board a reasonable opportunity of making any observations with respect thereto, and the Council shall, before proceeding to approve the regulations, take into consideration any observations which may be made by the Board.

(3) Every regulation made and approved under this section shall be laid before each House of Parliament as soon as may be after it is approved by the Privy Council, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after the regulation is laid before it, praying that the regulation

may be annulled, His Majesty in Council may annul the regulation, and if annulled it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

8.—(1) Section thirteen of the principal Act (which provides for erasing from the register the name of a practitioner convicted of crime or guilty of disgraceful conduct) shall be amended as follows:—

Amendment
of ss. 13 and
14 of 41 & 42
Vict. c. 33.

- (a) The power conferred on the General Council by the first paragraph thereof shall be exercised by the Board:
- (b) The following shall be substituted for the third paragraph thereof (but not including the proviso to that paragraph):—

“The Board may, and on the application of any medical authority shall, cause an inquiry to be made into the case of a person alleged to be liable to have his name erased under this section, and, if the Board on any such inquiry are satisfied that the name of that person ought to be erased from the register, they shall forward a report to the General Council setting out the facts proved at the inquiry and the finding of the Board.

The General Council, after receiving any such report, and after hearing any observations which the person affected or the medical authority may desire to make with reference to the report, may make an order directing the registrar to erase from the register the name of the person affected:

Provided that the General Council, if they are of opinion that further inquiry into the case is necessary, shall not themselves take any evidence for the purpose, but shall remit the case to the Board for further inquiry and report.”

(2) The power of the General Council under section fourteen of the principal Act to direct the restoration to the register of any name or entry erased therefrom by the Council shall not be exercised except upon a report made to the Council by the Board, and the power to restore to

the register any entry which has been erased by the Board shall be exercised by the Board.

(3) The amount of the fee to be paid on the restoration of any name or other entry to the register shall be such sum not exceeding five pounds as may be prescribed by the Board, and different fees may be prescribed in respect of different matters.

Appeal
against
removal
from register
or refusal to
register.

9. Any person aggrieved by the removal of his name from the dentists register, or by any refusal or failure to register his name in that register, may, within three months after the date on which notice is given to him by the registrar that his name has been so removed, or within six months after the date on which he applied to be so registered, as the case may be, appeal against the removal, or the refusal or failure, as the case may be, in manner provided by rules of court, to the High Court, and on any such appeal the High Court may give any such directions in the matter as they think proper, including any directions as to the costs of the appeal, and the order of the High Court shall be final and conclusive, and not subject to appeal to any other court:

Provided that nothing in this section shall apply to a refusal to register a person as a colonial dentist or as a foreign dentist if the reason for the refusal is that the certificate held or obtained by that person is not a recognised certificate within the meaning of section ten of the principal Act.

Application
of money
received
and accounts
of fees.

10.—(1) The Board shall, after paying any expenses incurred by the General Council in the execution of their duties under the principal Act and this Act, and any expenses of the Board, including the salary or remuneration of the registrar and of any other officers of the Board, allocate any money received by them, whether by way of fees or otherwise, to purposes connected with dental education and research or any public purposes connected with the profession of dentistry in such manner as the Board with the approval of the Council may determine.

(2) The Board shall keep accounts of all sums of money received or paid by them under the principal Act and this Act, and such accounts shall be audited in the prescribed manner and shall be submitted by the Board to the General Council at such times as the Council may require, and shall be published annually, and laid before both Houses of Parliament in the month of March in every

year if Parliament is then sitting, or if Parliament is not then sitting, within one month after the next sitting of Parliament.

- (3) All securities representing moneys received by the General Council, by way of fees or otherwise, under the principal Act which are, at the date of the establishment of the Board under this Act, vested in the General Council or in any other person shall, by virtue of this Act, be transferred to and vest in the Board, and all sums representing any such moneys as aforesaid which are, at the date aforesaid, held by the General Council shall be transferred by the Council to the Board.

11.—(1) In paragraph (a) of section six of the principal Act the words “graduate or” shall be inserted before the word “licentiate.”

Amendment
of ss. 6 & 7 of
41 & 42 Vict.
c. 33.

(2) Without prejudice to the provisions of section seven of the principal Act, any body being a medical authority within the meaning of the principal Act may from time to time transmit to the registrar certified lists of the persons who are graduates or licentiates of that body in dental surgery or dentistry, stating the qualifications and places of residence of the persons included in the lists, and the registrar, on receipt of any such lists and on payment of the registration fee in respect of each person to be registered, shall duly register those persons in accordance with regulations made by the Board.

12. In subsection (3) of section twelve of the principal Act, for the words from “and if the general registrar does not” to the end of the subsection there shall be substituted the words “and if no answer is returned to “ the inquiry within six months from the posting thereof “ it shall be lawful to erase the name of that person from “ the register.”

Amendment
of s. 12 of
41 & 42 Vict.
c. 33.

13. Section seventeen of the principal Act (which gives power to the General Council to make, alter and revoke orders and regulations) shall, as from the date of the establishment of the Board under this Act, cease to have effect, but any orders or regulations made by the General Council under that section shall continue in force except in so far as they may be varied or revoked by orders made by the Board under this Act.

Repeal of
s. 17 of
41 & 42 Vict.
c. 33.

Interpre-
tation.

14.—(1) In this Act, unless the context otherwise requires—

The expression “prescribed” means prescribed by regulations made under this Act:

The expression “registered dentist” means a person registered under the principal Act:

The expression “interim period” means the period between the commencement of this Act and the date on which the provisions of this Act prohibiting the practice of dentistry by unregistered persons come into operation, or such longer period as the Board may, on an application made at any time within two years after the date aforesaid, allow in the case of any person as respects whom the Board are satisfied that there were valid reasons for the failure to make an application before that date.

(2) For the purposes of this Act, the practice of dentistry shall be deemed to include the performance of any such operation and the giving of any such treatment, advice, or attendance as is usually performed or given by dentists, and any person who performs any operation or gives any treatment, advice, or attendance on or to any person as preparatory to or for the purpose of or in connection with the fitting, insertion, or fixing of artificial teeth shall be deemed to have practised dentistry within the meaning of this Act.

Provisions as
to evidence.

15.—(1) Prima facie evidence of any regulations made by the Board and approved by the General Council and the Privy Council may be given in the courts of justice and in all legal proceedings whatsoever by the production of a copy purporting to be printed by any printer in pursuance of an authority given by the Privy Council, or of a copy or extract purporting to be certified to be true by the Clerk of the Privy Council, and prima facie evidence of any other document issued by the Board may be so given by the production of a copy or extract purporting to be certified to be a true copy or extract by the registrar or some other officer of the Board authorised to give a certificate for the purposes of this provision, and no proof shall be required of the handwriting or official position or authority of any person certifying, in pursuance of this section, to the truth of any copy of or extract from any regulations or other document.

(2) A certificate purporting to be a certificate under the hand of the registrar stating that any person is, or was at any date, or is not, or was not at any date, duly registered under the principal Act or entered on any list to be kept by the registrar under this Act, or stating that any particulars are, or were at any date, or are not, or were not at any date, contained in the dentists register or any such list as aforesaid, with respect to any person, shall be *prima facie* evidence in all courts of law of the facts stated in the certificate.

16.—(1) The General Council shall, for the purpose of the exercise of their functions under the principal Act and this Act, consist of the ordinary members of the Council and of three additional members to be appointed by the Privy Council in accordance with the provisions of this section.

Provisions as to exercise by General Council of its functions under Dentists Acts

(2) No person shall be qualified for appointment as an additional member of the General Council unless he is a member of the Board, and is registered in the dentists register as a graduate or licentiate in dental surgery or dentistry.

(3) An additional member of the General Council shall, unless he previously ceases to be a person qualified for appointment as such, hold office for such period not exceeding five years as the Privy Council may appoint.

(4) The General Council shall, for the purpose of the exercise of their functions under the principal Act and this Act, have power to act by an executive committee of the Council, including at least one of the additional members of the Council appointed in pursuance of this section.

17.—(1) In the application of this Act to Scotland, the expression “the Minister of Health” means, unless the context otherwise requires, the Scottish Board of Health, the expression “High Court” means the Court of Session, and the provision authorising the Board to institute prosecutions for offences under the principal Act or this Act shall not apply.

Application to Scotland and Ireland.

(2) In the application of this Act to Ireland, the expression “the Minister of Health” means, unless the context otherwise requires, the Lord Lieutenant of Ireland, and any reference to a registered chemist and druggist shall include a reference to a registered druggist and to a licentiate apothecary.

10 & 11

Geo. 5. c. 67.

(3) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day.

Short title
and repeal.

18.—(1) This Act may be cited as the Dentists' Act, 1921, and shall be construed as one with the principal Act, and this Act and that Act may be cited together as the Dentists Acts, 1878 and 1921.

(2) The enactments set out in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that schedule, and, except as otherwise expressly provided therein, as from the date of the establishment of the Board under this Act.

SCHEDULES.

Section 2.

FIRST SCHEDULE.

1. CONSTITUTION AND PROCEEDINGS OF THE BOARD.

1. The Board shall consist of thirteen members.
2. On its first constitution the Board shall be composed of the following persons, namely :—
 - A chairman appointed by the Privy Council ;
 - Three persons, not being registered medical practitioners or registered dentists, appointed by the Minister of Health, the Scottish Board of Health, and the Lord Lieutenant of Ireland, respectively ;
 - Three persons to be appointed by the General Council, of whom one shall be a member of the branch council for England, one a member of the branch council for Scotland, and one a member of the branch council for Ireland ;
 - Six persons who are or have been engaged in the practice of dentistry, of whom two, to be appointed by the Privy Council, shall be persons who were not registered under the principal Act before the passing of this Act, and of whom four, to be appointed as to two thereof by the Minister of Health, as to one thereof by the Scottish Board of Health, and as to one thereof by the Lord Lieutenant of Ireland, shall be persons who were so registered.
3. The first members of the Board shall hold office for such term not exceeding three years from the commencement of this Act as the Privy Council may determine.

4. After the expiration of the term of office of the first members of the Board, the Board shall be composed of seven appointed members and six elected members.

Of the seven appointed members one (who shall be the Chairman of the Board) shall be appointed by the Privy Council, and three, who shall not be registered medical practitioners or registered dentists, by the Minister of Health, the Scottish Board of Health, and the Lord Lieutenant of Ireland respectively, and three by the General Council, of whom one shall be a member of the branch council for England, one a member of the branch council for Scotland, and one a member of the branch council for Ireland.

The six elected members shall be elected as follows :—

- (a) two shall be elected by qualified dentists practising in England and Wales ;
- (b) one shall be elected by qualified dentists practising in Scotland ;
- (c) one shall be elected by qualified dentists practising in Ireland ;
- (d) two shall be elected by registered dentists not being qualified dentists :

Provided that His Majesty may, at any time after the expiration of twenty-two years from the commencement of this Act, by Order in Council direct that paragraph (d) of the foregoing provision shall cease to have effect, that “four” shall be substituted for “two” in paragraph (a) thereof, and that “registered” shall be substituted for “qualified” in paragraphs (a), (b), and (c) thereof.

An Order in Council made under this paragraph shall take effect as from the date next after the Order is made on which all the members of the Board vacate office.

In this paragraph the expression “qualified dentists” means a person registered under the principal Act otherwise than by virtue of a right conferred by or under the provisions of this Act.

5. Any members of the Board other than the first members thereof shall hold office for a term of five years.

6. If the place of a member of the Board becomes vacant before the expiration of his term of office whether by death, resignation or otherwise, the vacancy shall be filled by appointment or election by the body or persons by whom the member was appointed or elected, and any person appointed or elected to fill a casual vacancy shall hold office so long only as the member in whose place he is appointed or elected would have held office :

Provided that, where the unexpired portion of the term of office of the vacating member is less than one year, the vacancy shall not be filled.

7. Any member ceasing to be a member of the Board shall be eligible for re-appointment or re-election.

8. The powers of the Board may be exercised notwithstanding any vacancy in their number.

9. The Board may, with the approval of the General Council, make rules—

- (a) for regulating the proceedings (including quorum) of the Board ; and
- (b) for enabling the Board to constitute committees ; and
- (c) for authorising the delegation to committees of any of the powers of the Board and for regulating the proceedings (including quorum) of committees ; and
- (d) for regulating the manner in which the elected members of the Board are to be elected :

Provided that the powers of the Board in connection with admission to, erasure from, and restoration to the register shall be exercised by the Board itself and shall not be delegated to any committee.

Section 17.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
41 & 42 Vict. c. 33.	The Dentists Act, 1878.	In section two the words “ and ‘ local registrar ’ means the registrar appointed by “ a branch council under the Medical “ Act, 1858 ” ; as from the date on which the provisions of this Act prohibiting the practice of dentistry by unregistered persons come into operation, sections three and four and section five from “ and a person ” to the end thereof ; subsections (2) and (5) of section eleven ; section fifteen ; section seventeen ; section twenty-nine ; sections thirty-two and thirty-three ; in section thirty-six the words “ and to the registrar of the “ Branch Council for that part of the “ United Kingdom in which the death “ occurs.”
49 & 50 Vict. c. 48.	The Medical Act, 1886.	Section twenty-six down to “ accordingly.”